

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**-----X
ALBERTO MARTINEZ,

Plaintiff

- against -

**THE CITY OF NEW YORK and
POLICE OFFICER ARIEL URENA (shield # 14116),**Defendants.
-----X

Index No.

Purchased 5-2-19Plaintiff designates New
York County as the place
of trialThe basis of the venue is
where the tort arose**SUMMONS****TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
May 2, 2019
THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY**

-----X
ALBERTO MARTINEZ,

Plaintiff,

Index No.

Verified Complaint

- against -

**THE CITY OF NEW YORK and
POLICE OFFICER ARIEL URENA (shield # 14116),**

Defendants.

-----X
Plaintiff ALBERTO MARTINEZ, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the Defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ALBERTO MARTINEZ was a resident of New York County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant, POLICE OFFICER ARIEL URENA (shield # 14116) ("P.O. URENA"), was and is a police officer employed by Defendants.

BACKGROUND

5. On April 6, 2018, at approximately 6:00 a.m., inside of 501 West 169th Street in New York County, without just cause or provocation, P.O. URENA, an officer with the NEW YORK CITY POLICE DEPARTMENT, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of Marijuana in the Second Degree and related charges.
6. On or about April 7, 2018, a criminal complaint was issued at the directive of the Defendants and a criminal action against Plaintiff commenced. Plaintiff remained in custody until his release on or about April 12, 2018.
7. The criminal matter was terminated in favor of Plaintiff on September 13, 2018.

PROCEDURAL POSTURE

8. On October 8, 2018, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
9. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.
10. This action has been commenced within one year and ninety days after the causes of action accrued.
11. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: MALICIOUS PROSECUTION

12. Paragraphs 1-11 are incorporated by reference as though fully set forth herein.
13. In arresting Plaintiff, the Defendants acted with malice.
14. The Defendants lacked probable cause to arrest Plaintiff.
15. All charges pending against Plaintiff were dismissed and sealed on September 13, 2018.
16. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: VIOLATION OF CIVIL RIGHTS

17. Paragraphs 1-16 are incorporated by reference as though fully set forth herein.
18. P.O. URENA was at all times relevant, duly appointed and acting as a police officer with NEW YORK CITY POLICE DEPARTMENT.
19. At all times mentioned herein, P.O. URENA was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
20. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
21. Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
22. On or about April 6, 2018, the Defendants, including P.O. URENA, while effectuating the seizure of Plaintiff, did search, seize, assault and commit a battery and grab the

person of Plaintiff without a court authorized arrest warrant.

23. The Defendants, including P.O. URENA, did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested. The Defendants did not possess probable cause to arrest Plaintiff.

24. The above actions of the Defendants' resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to Plaintiff's person;
- b. Freedom from battery to Plaintiff's person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process.

25. The Defendants subjected Plaintiff to such deprivations either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

26. The direct and proximate result of the Defendants' acts is that Plaintiff has suffered injuries of a psychological nature. Plaintiff was forced to endure pain, humiliation and suffering, all to Plaintiff's detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
May 2, 2019

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff

888 Grand Concourse, Suite 1H

Bronx, NY 10451

(212) 939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
ALBERTO MARTINEZ,

Plaintiff,

-against-

**THE CITY OF NEW YORK and
POLICE OFFICER ARIEL URENA (shield # 14116),**

Defendants
-----X

Index No.

Purchased: 5-2-19

VERIFICATION

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
May 2, 2019



ELLIOT S. KAY